

ShopFlare

Customer Rights & Policies

The Complete Guide to Your Shopping Rights

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Platform	ShopFlare – AI-Powered Clothing eCommerce
Category	Men's & Women's Fashion (Western + Ethnic Wear)
Jurisdiction	India
Last Revised	January 1, 2025
Contact	support@shopflare.in 1800-XXX-XXXX (Toll Free)

This document sets out the rights and protections available to every ShopFlare customer. It governs all transactions made on the ShopFlare platform — website, mobile application, and AI-assisted shopping interfaces — for clothing products including western wear and ethnic wear categories. Please read this policy carefully before placing an order.

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1. Return Policy

ShopFlare offers a straightforward return process designed to give customers confidence when shopping for clothing. Returns are accepted subject to the conditions outlined below.

1.1 Return Window

- Customers may initiate a return request within **7 calendar days** of the confirmed delivery date.
- The 7-day window begins from the date the delivery partner marks the shipment as 'Delivered'.
- Requests raised after this window will be automatically rejected by the system.

Example: A customer orders a kurti on March 1st and it is delivered on March 5th. The last valid date to initiate a return is **March 12th**. A request submitted on March 13th will be declined.

1.2 Eligibility Conditions for Returns

- The item must be **unused, unworn, and unwashed**.
- All **original tags and labels** must be attached and intact.
- The item must be returned in its **original packaging** (poly bag, brand packaging, etc.).
- A valid **order ID and reason for return** must be submitted via the ShopFlare app or website.
- Photographic evidence may be requested for quality-related returns.

1.3 How to Initiate a Return

- Log in to your ShopFlare account and navigate to **My Orders**.
- Select the item and click **Request Return**.
- Choose the return reason from the dropdown menu.
- Upload photographs if prompted (required for defective/wrong item returns).
- A confirmation email and SMS will be sent within **24 hours**.
- A pickup will be scheduled within **2–3 business days** of approval.

1.4 Non-Returnable Items

The following items cannot be returned under any circumstances:

- **Innerwear and lingerie** (bras, briefs, boxers, camisoles) — due to hygiene regulations.
- **Swimwear and bodysuits**.
- **Socks and hosiery**.
- Items marked as '**Final Sale**' or '**Non-Returnable**' on the product page.
- Gift cards and vouchers.
- Customised or **made-to-order** clothing items.
- Items where the fabric care label has been removed or tampered with.

Example: A customer purchases a pack of men's briefs and wishes to return them after delivery. This return will be **rejected** as innerwear is a non-returnable category on ShopFlare.

2. Refund Policy

Once a returned item is received and inspected by our quality team, ShopFlare will process the applicable refund. The refund amount and timeline depend on the nature of the return and the original payment method.

2.1 Refund Timeline

Payment Method	Refund Credit Timeline
UPI / Net Banking	3–5 business days
Credit / Debit Card	5–7 business days

ShopFlare Wallet	Within 24 hours
Cash on Delivery (COD)	3–5 business days (bank transfer)
EMI Transactions	As per bank EMI cancellation policy (7–10 days)

2.2 Refund Conditions

- Refunds are issued **only to the original payment source**. No cash refunds.
- The full item value is refunded if the return is approved and the item passes quality inspection.
- Shipping charges paid at the time of order are **non-refundable**, unless the return is due to a ShopFlare error (wrong item, defective product).
- If the returned item fails quality inspection (signs of use, missing tags, damage caused by customer), the item will be sent back and **no refund will be issued**.

2.3 Partial Refunds

Partial refunds may be granted in the following situations:

- Item returned with **minor packaging damage** (not product damage): up to 10% deduction.
- Item returned **without original accessories** (e.g., dupatta of an ethnic set missing): deduction based on accessory value.
- Promotional discount applied at checkout — refund will reflect the **actual amount paid**, not the MRP.

Example: A customer purchases a saree worth ₹2,000 using a ₹200 discount coupon, paying ₹1,800. Upon approved return, the refund issued will be ₹1,800, not ₹2,000.

3. Exchange Policy

ShopFlare supports product exchanges to ensure customers receive the right fit and quality. Exchanges are subject to stock availability.

3.1 Exchange Eligibility

- Exchange requests must be raised within **7 days of delivery**.
- Eligible reasons: size mismatch, colour/style different from what was ordered, or manufacturing defect.
- Item must be unused, with original tags and packaging intact.
- Each item is eligible for **one exchange only**. Exchanged items cannot be re-exchanged.

3.2 Size Exchange Process

- Select 'Exchange for Size' when raising the request.
- Choose the required size from the available stock.
- If the desired size is **out of stock**, you will be offered a full refund or ShopFlare Wallet credit.
- Exchange pickup and re-delivery is completed within **5–7 business days**.

Example: A customer orders a medium kurta but finds it too snug after trying it on for sizing. They raise an exchange request within 5 days. ShopFlare ships a large kurta and collects the medium during the same visit where possible.

3.3 Exchange for Defective Items

- Report within **48 hours of delivery** with photographs of the defect.
- Defective items are exchanged with the **same product**, same size and colour.
- If the same product is unavailable, a full refund is issued.

Example: A customer receives a shirt with a broken button and stitching gap at the collar. They upload clear photos within 36 hours. ShopFlare approves the defect claim and ships a replacement within 4 business days.

4. Cancellation Policy

4.1 Cancellation Before Shipment

- Orders can be cancelled **free of charge** before the order is handed to the delivery partner.
- Orders in 'Processing' or 'Packed' status can typically be cancelled within **12 hours** of placement.
- Full refund (including any shipping charges prepaid) is issued immediately.

4.2 Cancellation After Shipment

- Once the order status changes to '**Shipped**', direct cancellation is not possible.
- Customers must wait for delivery and then initiate a return request.
- Return shipping cost in such cases is borne by the customer (not applicable for defective/wrong items).

4.3 Cancellation by ShopFlare

ShopFlare reserves the right to cancel orders in the following cases:

- Item goes out of stock after order placement.
- Payment verification failure or suspected fraudulent transaction.
- Delivery address is in a non-serviceable area.
- Force majeure events (natural disasters, shipping partner strikes, etc.).

In all ShopFlare-initiated cancellations, a **full refund** is issued within 3 business days.

Example: A customer places an order for a limited-edition ethnic set. By the time the order is packed, the item is found to be out of stock. ShopFlare cancels the order and issues a full refund with a **₹100** goodwill coupon.

5. Shipping Policy

5.1 Delivery Timelines

Delivery Type	Estimated Time	Charges
Standard Delivery	5–7 business days	Free on orders above ₹499
Express Delivery	2–3 business days	₹79 flat fee
Same-Day Delivery	Same day (order before 11 AM)	₹149 (select cities only)
COD Orders	5–7 business days	₹29 COD handling fee

5.2 Shipping Conditions

- ShopFlare ships pan-India through empanelled logistics partners (Delhivery, BlueDart, Ekart, etc.).
- Delivery to Tier-3 cities and remote areas may take up to **10 business days**.
- Orders are not shipped on public holidays and Sundays.
- Tracking information is shared via email and SMS once the order is dispatched.
- In case of delivery failure (customer unavailable), two re-attempts are made before the order is returned to warehouse.

5.3 Failed Delivery

- If delivery fails after two attempts, the order is returned to ShopFlare's warehouse.
- Customer is notified and given **48 hours** to request re-shipment (additional charges may apply) or a refund.
- Re-shipment for COD orders requires prepayment.

6. Damaged / Defective Items Policy

ShopFlare conducts quality checks before dispatch. However, if you receive a damaged or defective item, we are committed to making it right promptly.

6.1 Reporting Window

- Damaged or defective items must be reported within **48 hours of delivery**.
- Reports submitted after 48 hours will not be eligible for replacement or refund under this policy.

6.2 What Qualifies as Defective

- Torn fabric, broken stitching, missing buttons or embellishments.
- Colour bleeding or staining present at the time of delivery.
- Wrong size, colour, or style delivered.
- Item significantly different from the product listing photographs.
- Packaging tampered with or open on delivery.

6.3 Reporting Process

- Navigate to **My Orders > Report an Issue**.
- Upload **clear photographs** of: (a) the defect/damage, (b) the shipping label, (c) the original packaging.
- Describe the issue in the text field provided.
- ShopFlare will review and respond within **24–48 hours**.

Example: A customer receives a jeans with a broken zip. They photograph the defect and the intact shipping label and submit a report within 30 hours. ShopFlare approves the claim and dispatches a replacement within 3 business days — no return pickup required for low-value defective items.

6.4 Resolution Options

- **Replacement:** Same product, same size — dispatched within 3–5 business days.
- **Full Refund:** If replacement stock is unavailable.
- **Partial Refund:** Offered for minor defects where the item remains usable (with customer consent).

Note: ShopFlare may request the defective item to be returned before dispatching a replacement for high-value products (above ₹2,000).

7. Customer Support Guidelines

7.1 Support Channels

Channel	Availability	Response Time
AI Chat Assistant (ShopFlare Bot)	24 × 7	Instant
Live Chat (Human Agent)	Mon–Sat, 9 AM–9 PM IST	< 5 minutes
Email: support@shopflare.in	24 × 7 (monitored)	Within 24 hours
Toll-Free: 1800-XXX-XXXX	Mon–Sat, 9 AM–7 PM IST	< 3 minutes wait

7.2 Escalation Matrix

- **Level 1:** AI Assistant resolves order tracking, FAQs, basic policy queries.
- **Level 2:** Live Agent handles return/refund approvals, complaints.
- **Level 3:** Senior Case Manager handles unresolved disputes (within 72 hours).
- **Level 4:** Legal/Grievance Officer for statutory complaints (within 15 days as per Consumer Protection Act).

7.3 Grievance Officer

As per the Consumer Protection (E-Commerce) Rules, 2020, ShopFlare has designated a Grievance Officer. Unresolved complaints may be escalated to: **grievance@shopflare.in**. Resolution will be provided within **15**

working days of receipt.

8. General Eligibility Conditions

- The customer must have a **registered ShopFlare account** with a verified mobile number and email.
- The order must have been placed directly through the ShopFlare platform (website or app). Third-party marketplace orders are not covered.
- Only the account holder who placed the order can initiate returns, exchanges, or refunds.
- Claims must match the **order ID and delivery address** on record.
- Products purchased during **flash sales** are subject to modified policies clearly communicated on the sale page.
- ShopFlare reserves the right to flag accounts with **more than 3 return requests in 30 days** for review.

9. Exceptions & Edge Cases

9.1 Missing Tags

If a customer removes original price tags or brand labels, the item becomes ineligible for return. Customers are advised to try on garments without removing tags.

Example: A customer tries on a dress and removes the price tag. They later wish to return it. The return is denied because the tag has been removed, indicating the item has been used.

9.2 Used or Washed Items

Items returned with signs of washing, ironing, perfume, or deodorant odour will fail quality inspection. Such items will be returned to the customer and no refund will be issued.

9.3 Late Return Requests

Requests submitted after the 7-day window are not accepted under any circumstances, including cases where the customer claims delayed awareness of a defect.

Example: A customer receives a kurta on May 1st but only wears it on May 10th, at which point they notice a loose thread. A return request submitted on May 11th falls outside the 7-day window (which ended May 8th) and will be declined.

9.4 Discounted and Sale Items

- Items purchased during sale events are returnable under standard policy unless marked 'Final Sale'.
- Refunds for sale items are based on the **actual sale price paid**, not the original MRP.
- Items marked '**Non-Returnable**' on the product page during a sale are strictly excluded.

9.5 Fabric Care and Returns

ShopFlare provides fabric care instructions on each product listing. If a garment is damaged due to improper washing or care by the customer (e.g., a 'dry clean only' saree washed in a machine), it is not eligible for return or refund.

9.6 Fraudulent Claims

ShopFlare employs AI-based fraud detection to identify suspicious return patterns, including returning different items than what was delivered, false damage claims, or repeated high-value returns. Accounts flagged for fraud may be suspended and legal action may be initiated.

10. Legal Disclaimers

Policy Changes	ShopFlare reserves the right to modify, update, or revoke any part of this policy at any time without prior notice. The updated policy will be published on the website and app. Continued use of the platform after a policy update constitutes acceptance of the revised terms.
Limitation of Liability	ShopFlare's liability in any transaction is limited to the value of the product purchased. ShopFlare is not liable for indirect, consequential, or incidental losses arising from delays, product defects, or service interruptions.
Governing Law	This policy is governed by the laws of India. Disputes shall be subject to the exclusive jurisdiction of courts in [City], India. Customers also have recourse through the National Consumer Disputes Redressal Commission (NCDRC) and the Consumer Protection Act, 2019.
Privacy of Return Data	Return request data, including photographs submitted by customers, is used solely for processing claims and fraud prevention. It is not shared with third parties except as required by law. Refer to the ShopFlare Privacy Policy for full details.
AI-Assisted Decisions	ShopFlare uses AI systems to assist in return eligibility checks and fraud detection. Customers have the right to request a human review of any AI-generated decision by contacting customer support.
Rejection of Fraudulent Claims	ShopFlare reserves the right to reject any return, exchange, or refund request that it reasonably suspects to be fraudulent, manipulated, or made in bad faith. No compensation will be issued for rejected fraudulent claims.

Thank you for shopping with ShopFlare!

For any questions about this policy, contact us at support@shopflare.in

ShopFlare is an AI-powered eCommerce platform. All policies are subject to applicable Indian laws.